

The Red Cross Society (Allocation Of Property) Act, 1936

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An Act to provide out of the property of the Indian Red Cross Society a fund to be administered in Burma by a Burma Red Cross Society, and to terminate in Burma the existing functions of the Indian Red Cross Society.

WHEREAS it is expedient to provide out of the property of the Indian Red Cross Society a Fund to be administered in Burma by a Burma Red Cross Society, and to terminate in Burma the existing functions of the Indian Red Cross Society; It is hereby enacted as follows:-

1.

(1)

Short title and extent.

This Act may be called the Red Cross Society (Allocation of Property) Act, 1936 .

(2)

It extends to the whole of India except the territories which, immediately before the 1st November, 1956 , were

comprised in Part B States].]

2.

Apportionment of corpus of property of Indian Red Cross Society.

Notwithstanding anything contained in the Indian Red Cross Society Act, 1920 , (15 of 1920) an amount equal to seven per cent of the corpus of the property vested by the said Act in the Indian Red Cross Society (which amount is in this Act referred to as the Fund) shall be set apart to be administered in the Province of Burma as a trust by such body of trustees as the High Court of Judicature at Rangoon may appoint, and in accordance with, and for such of the purposes referred to in section 7 of the said Act as may be contained in, any scheme settled by the said High Court.

3.

Transfer of apportioned property to trustees and dissolution of Burma Branch Committee of Indian Red Cross Society.

As soon as the High Court of Judicature at Rangoon has settled a scheme and made an order vesting the Fund in the body of trustees referred to in section 2 the Managing Body of the Indian Red Cross Society shall transfer the Fund to the said body of trustees and thereupon the Burma Provincial Committee of the Indian Red Cross Society, known as the Indian Red Cross Society, Burma Branch, shall be dissolved and all property of or belonging to that Committee, including the unexpended balance, if any, of any moneys distributed to that Committee under section 8 of the Indian Red Cross Society Act, 1920 (

15 of 1920

), shall be transferred to and shall vest in the said body of trustees to be held by them in the same manner and, subject to the scheme settled by the said High Court, for the same purposes as such property was held by that Committee.

4.

Cesser of provisions of Indian Red Cross Society Act, 1920 .

On the making of the vesting order referred to in section 3 the provisions of the Indian Red Cross Society Act, 1920 (15 of 1920

), and of any rules made thereunder relating to Branch Committees in the Sta- tes, their constitution, powers or functions, their representation on the Managing Body of the Indian Red Cross Society, and their right to receive a proportion of the income of property vested in the Society, shall cease to have effect in respect of the Province of Burma and of the Indian Red Cross Society, Burma Branch Committee.

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